



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

FEB 1 - 1991

DOT-E 10538

1. National Compressed Steel Corporation, Kansas City, Kansas is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a radioactive material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of radioactive contaminated scrap steel within a rail car and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on National Compressed Steel Corporation's application of January 28, 1991 submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to preclude serious economic loss.

3. HAZARDOUS MATERIALS (Descriptor and class). Scrap steel contaminated with small amount of unidentified radioactive material, classed as radioactive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Radioactive material, n.o.s.

5. REGULATION AFFECTED. 49 CFR Part 107, Appendix B to Subpart B, Paragraph (1); 49 CFR 172.203(d), Subparts D, E, and F of Part 172.

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a gondola rail car (KCS 803006).

b. The radioactive material is not readily dispersable, eliminating the need for additional containment.

c. The shipment will be monitored while being off loaded by the Kansas Department of Health and Environment.

8. SPECIAL PROVISIONS.

a. Shipment must be between the Armco facility, Kansas City, Missouri to National Compressed Steel Corporation, Kansas City, Kansas using the most direct route available.

b. The provisions of Appendix B to Subpart B Paragraph 1 of Part 107 do not apply.

c. The Federal Railroad Administration (FRA) is to be notified if any unusual incident, such as a derailment or railcar damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

d. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

9. REPORTING REQUIREMENTS. In addition to the reporting requirements of 49 CFR 171.15, any abnormal occurrence in transportation must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. February 10, 1991, or upon completion of shipment, whichever occurs earlier.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 1 - 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.